



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: PODS Case No. C-034673 regarding Police Officer Fernando Garcia, Tax No. 971065

Date: March 30, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Garcia was discourteous and used offensive language towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Garcia will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

November 10, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police
Department One Police Plaza
New York, NY 10038

VIA EMAIL

Re: CCRB v. PO Fernando Garcia (CCRB #202401777, Tax #971065, PODS #C-034673)

Commissioner Tisch:

I write to you regarding the plea in the above-referenced case.

The CCRB offered Officer Garcia a dismissal of the charges and specifications to impose departmental training. This is a downward deviation from the NYPD's Disciplinary Matrix. I offered this disposition for the following reasons:

1. Officer Garcia agreed to take responsibility for his misconduct;
2. The chaotic circumstances surrounding the arrest;
3. The belief that Officer Garcia's actions will be better corrected through training than forfeiture of days

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
Civilian Complaint Review Board